



BRYANT v. STEIN et al, Docket No. 1:23-cv-00077 (M.D.N.C. Jan 25, 2023),
Court Docket

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U.S. District Court
North Carolina Middle District (NCMD)
CIVIL DOCKET FOR CASE #: 1:23-cv-00077-CCE-LPA

BRYANT v. STEIN et al

Date Filed:	Jan 25, 2023
Nature of suit:	950 Constitutional - State Statute
Assigned to:	CHIEF DISTRICT JUDGE CATHERINE C. EAGLES
Case in other court:	24-01600 24-01617
Cause:	28:2201 Constitutionality of State Statute(s)
Date terminated:	2024-06-03
Jurisdiction:	Federal Question
Jury demand:	None
Referred to:	MAG/JUDGE L. PATRICK AULD

Parties and Attorneys

Plaintiff	AMY BRYANT, M.D.	
Representation	EVA TEMKIN ARNOLD & PORTER KAYE SCHOLER LLLP 601 MASSACHUSETTS AVE, NW WASHINGTON, DC 20001 (202) 942-5123 eva.temkin@arnoldporter.com ATTORNEY TO BE NOTICED	JESSICA GREENBAUM KING & SPALDING LLP 1700 PENNSYLVANIA AVENUE, NW SUITE 900 WASHINGTON, DC 20006 (202) 626-3731 jgreenbaum@kslaw.com TERMINATED: 02/13/2024 ATTORNEY TO BE NOTICED

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Defendant

JOSHUA H. STEIN
in his official capacity as Attorney General for the State of North
Carolina

Representation

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Defendant

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Defendant

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Representation

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Defendant

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in her official capacity as President of the North Carolina Medical

Board

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Defendant

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Representation

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LEAD ATTORNEY
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Defendant

DEVDUTTA G. SANGVAI, MD, MBA
in his official capacity as a member of the North Carolina Medical Board

Representation

MICHAEL E. BULLERI
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LEAD ATTORNEY
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Defendant

JOHN W. RUSHER, MD, JD
in his official capacity as a member of the North Carolina Medical Board

Representation

MICHAEL E. BULLERI
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LEAD ATTORNEY
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Defendant **WILLIAM M. BRAWLEY**
in his official capacity as a member of the North Carolina Medical Board

Representation **MICHAEL E. BULLERI**
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Defendant **W. HOWARD HALL, MD**
in his official capacity as a member of the North Carolina Medical Board

Representation **MICHAEL E. BULLERI**
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Defendant **SHARONA Y. JOHNSON, PHD, FNP-BC**
in her official capacity as a member of the North Carolina Medical Board

Representation **MICHAEL E. BULLERI**
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Defendant **JOSHUA D. MALCOLM, JD**
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Representation **MICHAEL E. BULLERI**
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Defendant **MIGUEL A. PINEIRO, PA-C, MHPE**
in his official capacity as a member of the North Carolina Medical Board

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Defendant **MELINDA H. PRIVETTE, MD, JD**
in her official capacity as a member of the North Carolina Medical Board

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Defendant **ANURADHA RAO-PATEL, MD**
in her official capacity as a member of the North Carolina Medical Board

Representation **MICHAEL E. BULLERI**
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Defendant **ROBERT RICH, JR., MD**
in his official capacity as a member of the North Carolina Medical Board

Representation **MICHAEL E. BULLERI**
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Intervenor Defendant

Timothy K. Moore

Representation

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Intervenor Defendant

Philip E. Berger

Representation

Philip E. Berger
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WILLIAM ELLIS BOYLE
(See above for address)

TERMINATED: 08/11/2025
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ATTORNEY TO BE NOTICED

DENISE M. HARLE
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TERMINATED: 10/24/2023
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**ERICA STEINMILLER-
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TERMINATED: 02/02/2024
ATTORNEY TO BE NOTICED

MARK LIPPELMANN
(See above for address)
TERMINATED: 06/13/2023

Docket Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Description
1	Jan 25, 2023	COMPLAINT against WILLIAM M. BRAWLEY, W. HOWARD HALL, SHARONA Y. JOHNSON, CHRISTINE M. KHANDLWAL, MICHAUX R. KILPATRICK, KODY KINSLEY, JOSHUA D. MALCOLM, JEFF NIEMAN, MIGUEL A. PINEIRO, MELINDA H. PRIVETTE, ANURADHA RAO-PATEL, ROBERT RICH, JR, JOHN W. RUSHER, DEVDUTTA G. SANGVAI, JOSHUA H. STEIN (Filing fee \$ 402 receipt number ANCMDC-3478658.), filed by AMY BRYANT, MD. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O, # 16 Exhibit P, # 17 Exhibit Q, # 18 Exhibit R, # 19 Exhibit S, # 20 Exhibit T, # 21 Civil Cover Sheet)(COREY, CHELSEA) (Entered: 01/25/2023)
2	Jan 25, 2023	NOTICE of Attorney Appearance by attorney CHELSEA COREY on behalf of Plaintiff AMY BRYANT, MD (COREY, CHELSEA) (Entered: 01/25/2023)
3	Jan 25, 2023	NOTICE of Special Appearance by attorney EVA TEMKIN on behalf of Plaintiff AMY BRYANT, MD (Filing fee \$ 25 receipt number ANCMDC-3479352.) (TEMKIN, EVA) (Entered: 01/25/2023)
4	Jan 25, 2023	NOTICE of Special Appearance by attorney PAUL ALESSIO MEZZINA on behalf of Plaintiff AMY BRYANT, MD (Filing fee \$ 25 receipt number ANCMDC-3479363.) (MEZZINA, PAUL) (Entered: 01/25/2023)
5	Jan 25, 2023	NOTICE of Special Appearance by attorney JESSICA GREENBAUM on behalf of Plaintiff AMY BRYANT, MD (Filing fee \$ 25 receipt number ANCMDC-3479376.) (GREENBAUM, JESSICA) (Entered: 01/25/2023)
	Jan 30, 2023	Case ASSIGNED to JUDGE WILLIAM L. OSTEEN, JR and MAG/JUDGE L. PATRICK AULD. (Carter, Alexus) (Entered: 01/30/2023)

Entry #	Filing Date	Description
6	Jan 30, 2023	Summons Issued as to All Defendants. (Attachments: # 1 Summons - JEFF NIEMAN, # 2 Summons - KODY H. KINSLEY, # 3 Summons - MICHAUX R. KILPATRICK, MD, PHD, # 4 Summons - CHRISTINE M. KHANDELWAL, DO, # 5 Summons - DEVDUTTA G. SANGVAI, MD, MBA, # 6 Summons - JOHN W. RUSHER, MD, JD, # 7 Summons - WILLIAM M. BRAWLEY, # 8 Summons - W. HOWARD HALL, MD, # 9 Summons - SHARONA Y. JOHNSON, PHD, FNP-BC, # 10 Summons - JOSHUA D. MALCOLM, JD, # 11 Summons - MIGUEL A. PINEIRO, PA-C, MHPE, # 12 Summons - MELINDA H. PRIVETTE, MD, JD, # 13 Summons - ANURADHA RAO-PATEL, MD, # 14 Summons - ROBERT RICH, JR., MD) (Carter, Alexis) (Entered: 01/30/2023)
7	Jan 30, 2023	Notice of Right to Consent. Counsel shall serve the attached form on all parties. (Attachments: # 1 Consent Form) (Carter, Alexis) (Entered: 01/30/2023)
8	Feb 6, 2023	AFFIDAVIT OF SERVICE as to JOSHUA H. STEIN served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
9	Feb 6, 2023	AFFIDAVIT OF SERVICE as to JEFF NIEMAN served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
10	Feb 6, 2023	AFFIDAVIT OF SERVICE as to KODY H. KINSLEY served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
11	Feb 6, 2023	AFFIDAVIT OF SERVICE as to MICHAUX R. KILPATRICK, MD, PHD served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
12	Feb 6, 2023	AFFIDAVIT OF SERVICE as to CHRISTINE M. KHANDELWAL, DO served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
13	Feb 6, 2023	AFFIDAVIT OF SERVICE as to DEVDUTTA G. SANGVAI, MD, MBA served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
14	Feb 6, 2023	AFFIDAVIT OF SERVICE as to JOHN W. RUSHER, MD, JD served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
15	Feb 6, 2023	AFFIDAVIT OF SERVICE as to WILLIAM M. BRAWLEY served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
16	Feb 6, 2023	AFFIDAVIT OF SERVICE as to W. HOWARD HALL, MD served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
17	Feb 6, 2023	AFFIDAVIT OF SERVICE as to SHARONA Y. JOHNSON, PHD, FNP-BC served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
18	Feb 6, 2023	AFFIDAVIT OF SERVICE as to JOSHUA D. MALCOLM, JD served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
19	Feb 6, 2023	AFFIDAVIT OF SERVICE as to MIGUEL A. PINEIRO, PA-C, MHPE served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
20	Feb 6, 2023	AFFIDAVIT OF SERVICE as to MELINDA H. PRIVETTE, MD, JD served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
21	Feb 6, 2023	AFFIDAVIT OF SERVICE as to ANURADHA RAO-PATEL, MD served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)
22	Feb 6, 2023	AFFIDAVIT OF SERVICE as to ROBERT RICH, JR., MD served on 2/1/2023, answer due 2/22/2023. (COREY, CHELSEA) (Entered: 02/06/2023)

Entry #	Filing Date	Description
23	Feb 15, 2023	NOTICE of Attorney Appearance by attorney MICHAEL E. BULLERI on behalf of Defendants WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDELWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA (BULLERI, MICHAEL) (Entered: 02/15/2023)
24	Feb 15, 2023	MOTION for Extension of Time to File Answer re 1 Complaint,,, by WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDELWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA. (Attachments: # 1 Text of Proposed Order Proposed Order)(BULLERI, MICHAEL) (Entered: 02/15/2023)
	Feb 15, 2023	ORDER granting 24 Motion for Extension of Time to Answer for WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDELWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, and DEVDUTTA G. SANGVAI, MD, MBA. Answer due by 3/24/2023. Signed by John Brubaker, Clerk of Court, on 2/15/2023. (Brubaker, John) (Entered: 02/15/2023)
25	Feb 16, 2023	NOTICE of Attorney Appearance by attorney KATHRYN HICKS SHIELDS on behalf of Defendant JEFF NIEMAN (SHIELDS, KATHRYN) (Entered: 02/16/2023)
26	Feb 16, 2023	MOTION for Extension of Time to File Answer re 1 Complaint,,, by JEFF NIEMAN. (Attachments: # 1 Text of Proposed Order)(SHIELDS, KATHRYN) (Entered: 02/16/2023)
	Feb 17, 2023	ORDER granting 26 Motion for Extension of Time to Answer for JEFF NIEMAN. Answer due by 3/24/2023. Signed by John Brubaker, Clerk of Court, on 02/17/2023. (Brubaker, John) (Entered: 02/17/2023)
27	Feb 21, 2023	NOTICE of Attorney Appearance by attorney MICHAEL T. WOOD on behalf of Defendant KODY H. KINSLEY (WOOD, MICHAEL) (Entered: 02/21/2023)
28	Feb 21, 2023	NOTICE of Attorney Appearance by attorney WILLIAM ELLIS BOYLE on behalf of Intervenor Defendants Timothy K. Moore, Philip E. Berger (BOYLE, WILLIAM) (Entered: 02/21/2023)
29	Feb 21, 2023	MOTION to Intervene by Philip E. Berger, Timothy K. Moore. Response to Motion due by 3/14/2023 (Attachments: # 1 Exhibit 1 - Proposed Answer)(BOYLE, WILLIAM) (Additional attachment(s) added on 2/21/2023: # 2 Text of Proposed Order) (Hicks, Samantha). (Entered: 02/21/2023)
30	Feb 21, 2023	MEMORANDUM re 29 MOTION to Intervene (Memorandum in Support) by Intervenor Defendant Timothy K. Moore. (Attachments: # 1 Exhibit 1 - February 13, 2023, Letter)(BOYLE, WILLIAM) (Attachment 1 replaced on 2/21/2023) (Hicks, Samantha). (Entered: 02/21/2023)
31	Feb 21, 2023	***FILED IN ERROR*** NOTICE by Philip E. Berger, Timothy K. Moore re 29 MOTION to Intervene , 30 Memorandum (PROPOSED ORDER) (BOYLE, WILLIAM) Modified

Entry #	Filing Date	Description
		on 2/21/2023 to mark as filed in error per attorney. (Hicks, Samantha) (Entered: 02/21/2023)
32	Feb 21, 2023	***FILED IN ERROR*** MEMORANDUM re 30 Memorandum (Exhibit 1 - February 13, 2023)(Corrected) by Intervenor Defendant Timothy K. Moore. (BOYLE, WILLIAM) Modified on 2/21/2023 to mark as filed in error per attorney. (Hicks, Samantha) (Entered: 02/21/2023)
33	Feb 21, 2023	Corporate Disclosure Statement. (BOYLE, WILLIAM) (Entered: 02/21/2023)
34	Feb 21, 2023	Corporate Disclosure Statement. (BOYLE, WILLIAM) (Entered: 02/21/2023)
35	Feb 21, 2023	NOTICE of Special Appearance by attorney DENISE M. HARLE on behalf of Intervenor Defendant Timothy K. Moore (Filing fee \$ 25 receipt number ANCMDC-3500295.) (HARLE, DENISE) (Entered: 02/21/2023)
36	Feb 21, 2023	NOTICE of Special Appearance by attorney ERICA STEINMILLER-PERDOMO on behalf of Intervenor Defendant Timothy K. Moore (Filing fee \$ 25 receipt number ANCMDC-3500297.) (STEINMILLER-PERDOMO, ERICA) (Entered: 02/21/2023)
37	Feb 21, 2023	NOTICE of Special Appearance by attorney MARK LIPPELMANN on behalf of Intervenor Defendant Timothy K. Moore (Filing fee \$ 25 receipt number ANCMDC-3500301.) (LIPPELMANN, MARK) (Entered: 02/21/2023)
38	Feb 22, 2023	NOTICE of Attorney Appearance by attorney AMAR MAJMUNDAR on behalf of Defendant JOSHUA H. STEIN (MAJMUNDAR, AMAR) (Entered: 02/22/2023)
39	Feb 22, 2023	NOTICE of Attorney Appearance by attorney STEPHANIE A. BRENNAN on behalf of Defendant JOSHUA H. STEIN (BRENNAN, STEPHANIE) (Entered: 02/22/2023)
40	Feb 22, 2023	NOTICE of Attorney Appearance by attorney SARAH G. BOYCE on behalf of Defendant JOSHUA H. STEIN (BOYCE, SARAH) (Entered: 02/22/2023)
41	Feb 22, 2023	ANSWER to 1 Complaint,,, by KODY H. KINSLEY. (WOOD, MICHAEL) (Entered: 02/22/2023)
42	Feb 22, 2023	NOTICE of Special Appearance by attorney ERIN MORROW HAWLEY on behalf of Intervenor Defendant Timothy K. Moore (Filing fee \$ 25 receipt number ANCMDC-3501377.) (HAWLEY, ERIN) (Entered: 02/22/2023)
43	Feb 22, 2023	ANSWER to 1 Complaint,,, by JOSHUA H. STEIN. (MAJMUNDAR, AMAR) (Entered: 02/22/2023)
44	Feb 23, 2023	RESPONSE filed by Plaintiff AMY BRYANT, MD re 29 MOTION to Intervene filed by Timothy K. Moore, Philip E. Berger filed by AMY BRYANT, MD. Replies due by 3/9/2023 (COREY, CHELSEA) (Entered: 02/23/2023)
45	Feb 27, 2023	RESPONSE filed by Defendant JOSHUA H. STEIN re 29 MOTION to Intervene filed by Timothy K. Moore, Philip E. Berger filed by JOSHUA H. STEIN. Replies due by 3/13/2023 (MAJMUNDAR, AMAR) (Entered: 02/27/2023)
46	Mar 1, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR on 03/01/2023, that any additional responses from the remaining defendants to the motion to intervene, (Doc. 29), shall be filed on or before Wednesday, March 8, 2023. If no response is filed on or before March 8, 2023, the motion will be decided as an uncontested motion. FURTHER that the movant Intervenor shall file an objection, if any, to the response

Entry #	Filing Date	Description
		date of March 24, 2023 as proposed by Plaintiff on or before Wednesday, March 8, 2023. (Taylor, Abby) (Entered: 03/01/2023)
47	Mar 1, 2023	RESPONSE filed by Defendant KODY H. KINSLEY re 29 MOTION to Intervene filed by Timothy K. Moore, Philip E. Berger filed by KODY H. KINSLEY. Replies due by 3/15/2023 (WOOD, MICHAEL) (Entered: 03/01/2023)
48	Mar 7, 2023	RESPONSE filed by Defendants WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDLWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA re 29 MOTION to Intervene filed by Timothy K. Moore, Philip E. Berger filed by WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDLWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA. Replies due by 3/21/2023 (BULLERI, MICHAEL) (Entered: 03/07/2023)
49	Mar 8, 2023	RESPONSE re 29 MOTION to Intervene filed by JEFF NIEMAN. Replies due by 3/22/2023 (SHIELDS, KATHRYN) (Entered: 03/08/2023)
50	Mar 10, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR on 03/10/2023, that the Motion to Intervene as Defendants, (Doc. 29), is GRANTED and Intervenors Philip E. Berger, President Pro Tempore of the North Carolina Senate, and Timothy K. Moore, Speaker of the North Carolina House of Representatives, are permitted to intervene on behalf of the General Assembly and as agents of the State of North Carolina to defend N.C. Gen. Stat. §§ 14-44, 14-45, 14- 45.1, 90-21.82, 90-21.90, and 10A N.C. Admin. Code Subchapter 14E pursuant to Fed. R. Civ. P. 24 and LR 7.3 in this action. FURTHER ORDERED that Intervenors shall file an answer or otherwise respond to the complaint on or before March 24, 2023. (Taylor, Abby) (Entered: 03/10/2023)
	Mar 10, 2023	Set Answer Deadline: Philip E. Berger answer due 3/24/2023; Timothy K. Moore answer due 3/24/2023. (Taylor, Abby) (Entered: 03/10/2023)
51	Mar 24, 2023	ANSWER to 1 Complaint,,, by WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDLWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA. (BULLERI, MICHAEL) (Entered: 03/24/2023)
52	Mar 24, 2023	ANSWER to 1 Complaint,,, by JEFF NIEMAN. (SHIELDS, KATHRYN) (Entered: 03/24/2023)
53	Mar 24, 2023	MOTION to Dismiss by Philip E. Berger, Timothy K. Moore. Response to Motion due by 4/14/2023 (Attachments: # 1 Text of Proposed Order)(BOYLE, WILLIAM) (Entered: 03/24/2023)
54	Mar 24, 2023	MEMORANDUM filed by Intervenor Defendants Philip E. Berger, Timothy K. Moore re 53 MOTION to Dismiss (Memorandum in Support) filed by Philip E. Berger, Timothy K. Moore. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4)(BOYLE, WILLIAM) (Entered: 03/24/2023)

Entry #	Filing Date	Description
55	Apr 3, 2023	MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss by AMY BRYANT, MD. (Attachments: # 1 Text of Proposed Order)(COREY, CHELSEA) (Entered: 04/03/2023)
56	Apr 4, 2023	MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss by JOSHUA H. STEIN. (Attachments: # 1 Text of Proposed Order)(MAJMUNDAR, AMAR) (Entered: 04/04/2023)
	Apr 4, 2023	Motions Referred to MAG/JUDGE L. PATRICK AULD re: 55 MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss and 56 MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss . (Daniel, J) (Entered: 04/04/2023)
	Apr 4, 2023	TEXT ORDER granting 55 Consent Motion for Extension of Time and 56 Consent Motion for Extension of Time. The deadline for any response to 53 Motion to Dismiss is extended to 04/21/2023. Issued by MAG/JUDGE L. PATRICK AULD on 04/04/2023. (AULD, L.) (Entered: 04/04/2023)
57	Apr 13, 2023	MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss by KODY H. KINSLEY. (Attachments: # 1 Text of Proposed Order)(WOOD, MICHAEL) (Entered: 04/13/2023)
	Apr 14, 2023	Motion Submitted to JUDGE WILLIAM L. OSTEEN, JR., re: 57 MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss. (Daniel, J) (Entered: 04/14/2023)
58	Apr 14, 2023	RESPONSE filed by Defendants WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDLWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA re 53 MOTION to Dismiss filed by Timothy K. Moore, Philip E. Berger filed by WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDLWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA. Replies due by 4/28/2023 (BULLERI, MICHAEL) (Entered: 04/14/2023)
59	Apr 18, 2023	Second MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss by JOSHUA H. STEIN. (Attachments: # 1 Text of Proposed Order)(MAJMUNDAR, AMAR) (Entered: 04/18/2023)
60	Apr 18, 2023	Second MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss by AMY BRYANT, MD. (Attachments: # 1 Text of Proposed Order)(COREY, CHELSEA) (Entered: 04/18/2023)
61	Apr 18, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR on 04/18/2023, that Defendant Sec. Kinsley's Motion for Extension of Time to File Response to Intervenor's Motion to Dismiss, (Doc. 57), is GRANTED and Defendant Kinsley shall have through and including April 28, 2023, to file and serve a response to Defendant-Intervenor's motion to dismiss. (Taylor, Abby) (Entered: 04/18/2023)
	Apr 19, 2023	Motions Submitted to JUDGE WILLIAM L. OSTEEN, JR., re: 59 Second MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss and 60

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		Second MOTION for Extension of Time to File Response/Reply as to 53 MOTION to Dismiss. (Daniel, J) (Entered: 04/19/2023)
	Apr 19, 2023	Set/Response Deadline re 53 MOTION to Dismiss : Response to Motion due by 4/28/2023. (Taylor, Abby) (Entered: 04/19/2023)
62	Apr 19, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR on 04/19/2023, that The Attorney Generals Second Motion for Extension of Time to File Response to Intervenor's Motion to Dismiss, (Doc. 59), is GRANTED and Defendant Stein shall have until and including April 28, 2023, to respond to Legislative-Intervenor Defendants Motion to Dismiss, (Doc. 53). (Taylor, Abby) (Entered: 04/19/2023)
63	Apr 19, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR on 04/19/2023, that Plaintiff's Second Motion for Extension of Time to File Response to Intervenor's Motion to Dismiss, (Doc. 60), is GRANTED and Plaintiff shall have up to and including April 28, 2023, to respond to Intervenor's Motion to Dismiss, (Doc. 53). (Taylor, Abby) (Entered: 04/19/2023)
64	Apr 28, 2023	RESPONSE in Opposition re 53 MOTION to Dismiss filed by Timothy K. Moore, Philip E. Berger filed by JOSHUA H. STEIN. Replies due by 5/12/2023 (BOYCE, SARAH) (Entered: 04/28/2023)
65	Apr 28, 2023	NOTICE of Attorney Appearance by attorney SRIPRIYA NARASIMHAN on behalf of Defendant JOSHUA H. STEIN (NARASIMHAN, SRIPRIYA) (Entered: 04/28/2023)
66	Apr 28, 2023	NOTICE by JEFF NIEMAN re 53 MOTION to Dismiss Notice of No Position on Motion (SHIELDS, KATHRYN) (Entered: 04/28/2023)
67	Apr 28, 2023	RESPONSE filed by Defendant KODY H. KINSLEY re 53 MOTION to Dismiss filed by Timothy K. Moore, Philip E. Berger filed by KODY H. KINSLEY. Replies due by 5/12/2023 (WOOD, MICHAEL) (Entered: 04/28/2023)
68	Apr 28, 2023	RESPONSE in Opposition re 53 MOTION to Dismiss filed by Timothy K. Moore, Philip E. Berger filed by AMY BRYANT, MD. Replies due by 5/12/2023 (COREY, CHELSEA) (Entered: 04/28/2023)
69	May 3, 2023	MOTION for Extension of Time to File Response/Reply as to 67 Response to Motion, 68 Response in Opposition to Motion by Philip E. Berger, Timothy K. Moore. (Attachments: # 1 Text of Proposed Order)(BOYLE, WILLIAM) (Entered: 05/03/2023)
	May 4, 2023	Motion Submitted to JUDGE WILLIAM L. OSTEEN, JR., re: 69 MOTION for Extension of Time to File Response/Reply as to 67 Response to Motion, 68 Response in Opposition to Motion. (Daniel, J) (Entered: 05/04/2023)
70	May 5, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR. on 5/5/2023; that Defendants Berger and Moore's motion for extension of time, (Doc. 69), is GRANTED and that the deadline for Defendants to file and serve their reply to Plaintiffs' response, (Doc. 68), is extended until May 26, 2023. (Hicks, Samantha) (Entered: 05/05/2023)
71	May 25, 2023	NOTICE OF WITHDRAWAL AND SUBSTITUTION OF COUNSEL by JEFF NIEMAN. (O'BRIEN, ELIZABETH) Modified on 5/25/2023 to correct title of document (Taylor, Abby). (Entered: 05/25/2023)
72	May 26, 2023	REPLY, filed by Intervenor Defendants Philip E. Berger, Timothy K. Moore, to Response to 53 MOTION to Dismiss filed by Philip E. Berger, Timothy K. Moore. (BOYLE, WILLIAM) (Entered: 05/26/2023)

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	May 30, 2023	Motion Submitted to JUDGE WILLIAM L. OSTEEN, JR., re: 53 MOTION to Dismiss. (Daniel, J) (Entered: 05/30/2023)
73	Jun 2, 2023	MOTION for Leave to File Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss by AMY BRYANT, MD. Response to Motion due by 6/23/2023 (Attachments: # 1 Exhibit A - Proposed Amended Complaint, # 2 Exhibit B - Redlined Comparison, # 3 Exhibit C - Session Law, # 4 Text of Proposed Order)(COREY, CHELSEA) (Entered: 06/02/2023)
74	Jun 5, 2023	NOTICE by Philip E. Berger, Timothy K. Moore of Attorney Withdrawal and Substitution of Counsel (LIPPELMANN, MARK) (Entered: 06/05/2023)
75	Jun 5, 2023	NOTICE by JOSHUA H. STEIN re 73 MOTION for Leave to File Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss (MAJMUNDAR, AMAR) (Entered: 06/05/2023)
76	Jun 6, 2023	NOTICE by JEFF NIEMAN re 73 MOTION for Leave to File Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss (O'BRIEN, ELIZABETH) (Entered: 06/06/2023)
77	Jun 6, 2023	Consent MOTION to Withdraw as Attorney MARK LIPPELMANN by on behalf of Philip E. Berger, Timothy K. Moore. (Attachments: # 1 Proposed Order)(LIPPELMANN, MARK) (Entered: 06/06/2023)
	Jun 7, 2023	Motion Submitted to JUDGE WILLIAM L. OSTEEN, JR., re: 77 Consent MOTION to Withdraw as Attorney MARK LIPPELMANN. (Daniel, J) (Entered: 06/07/2023)
78	Jun 13, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR on 06/13/2023, granting 77 Motion to Withdraw as Attorney. Attorney MARK LIPPELMANN terminated. (Taylor, Abby) (Entered: 06/13/2023)
79	Jun 16, 2023	NOTICE by KODY H. KINSLEY re 73 MOTION for Leave to File Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss (WOOD, MICHAEL) (Entered: 06/16/2023)
80	Jun 20, 2023	RESPONSE filed by Intervenor Defendants Philip E. Berger, Timothy K. Moore re 73 MOTION for Leave to File Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss filed by AMY BRYANT, M.D. filed by Philip E. Berger, Timothy K. Moore. (BOYLE, WILLIAM) (Entered: 06/20/2023)
	Jun 21, 2023	Set Reply Deadline re 73 MOTION for Leave to File Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss. Replies due by 7/5/2023. (Hicks, Samantha) (Entered: 06/21/2023)
	Jul 10, 2023	Motion Submitted to JUDGE WILLIAM L. OSTEEN, JR., re: 73 MOTION for Leave to File Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss. (Daniel, J) (Entered: 07/10/2023)
81	Aug 7, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEN, JR on 08/07/2023, that Plaintiff's Motion for Leave to File an Amended Complaint and to Expedite Supplemental Briefing on Intervenor's Motion to Dismiss, (Doc. 73), is GRANTED, and Plaintiff shall file and serve the Amended Complaint, (Doc. 73 -1), as a new pleading upon the docket within seven days of this order. FURTHER ORDERED that Intervenor-Defendants Phillip E. Berger and Timothy K. Moore shall refile, within five days of the filing of the Amended Complaint, their original motion to dismiss and accompanying brief with only the

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		citations amended to correspond to the Amended Complaint. Within five days thereafter, Plaintiff and Defendant Joshua Stein shall refile their responses to the motion to dismiss with only citations amended to correspond to the amended complaint. Intervenor-Defendants' reply shall be filed within five days thereafter. FURTHER ORDERED that, pursuant to Federal Rule of Civil Procedure 12(b)(6), Intervenor- Defendants' pending Motion to Dismiss, (Doc. 53), is not responsive to the operative pleading, which is the amended complaint. See Young v. City of Mount Rainer, 238 F.3d 567, 572 (4th Cir. 2001). That motion to dismiss, (Doc. 53), is DENIED WITHOUT PREJUDICE as MOOT. (Taylor, Abby) (Entered: 08/07/2023)
	Aug 7, 2023	Set Amended Complaint Deadline due by 8/14/2023. (Taylor, Abby) (Entered: 08/07/2023)
82	Aug 7, 2023	AMENDED COMPLAINT against defendant WILLIAM M. BRAWLEY, Philip E. Berger, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDELWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, KODY H. KINSLEY, JOSHUA D. MALCOLM, JD, Timothy K. Moore, JEFF NIEMAN, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA, JOSHUA H. STEIN, filed by AMY BRYANT, MD. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O, # 16 Exhibit P, # 17 Exhibit Q, # 18 Exhibit R, # 19 Exhibit S, # 20 Exhibit T)(COREY, CHELSEA) (Entered: 08/07/2023)
83	Aug 14, 2023	MOTION to Dismiss Amended Complaint by Philip E. Berger, Timothy K. Moore. (Attachments: # 1 Text of Proposed Order)(BOYLE, WILLIAM) (Entered: 08/14/2023)
84	Aug 14, 2023	MEMORANDUM filed by Intervenor Defendants Philip E. Berger, Timothy K. Moore re 82 Amended Complaint,,, 83 MOTION to Dismiss Amended Complaint (In Support of Motion to Dismiss Amended Complaint) filed by Philip E. Berger, Timothy K. Moore. (BOYLE, WILLIAM) (Entered: 08/14/2023)
85	Aug 16, 2023	RESPONSE in Opposition re 83 MOTION to Dismiss Amended Complaint filed by Timothy K. Moore, Philip E. Berger filed by AMY BRYANT, MD. Replies due by 8/30/2023 (COREY, CHELSEA) (Entered: 08/16/2023)
86	Aug 16, 2023	RESPONSE in Opposition re 83 MOTION to Dismiss Amended Complaint filed by Timothy K. Moore, Philip E. Berger filed by JOSHUA H. STEIN. Replies due by 8/30/2023 (Attachments: # 1 Exhibit Redlined Version)(BOYCE, SARAH) (Entered: 08/16/2023)
87	Aug 21, 2023	ANSWER to Amended Complaint by WILLIAM M. BRAWLEY, W. HOWARD HALL, MD, SHARONA Y. JOHNSON, PHD, FNP-BC, CHRISTINE M. KHANDELWAL, DO, MICHAUX R. KILPATRICK, MD, PHD, JOSHUA D. MALCOLM, JD, MIGUEL A. PINEIRO, PA-C, MHPE, MELINDA H. PRIVETTE, MD, JD, ANURADHA RAO-PATEL, MD, ROBERT RICH, JR., MD, JOHN W. RUSHER, MD, JD, DEVDUTTA G. SANGVAI, MD, MBA. (BULLERI, MICHAEL) (Entered: 08/21/2023)
88	Aug 21, 2023	REPLY, filed by Intervenor Defendants Philip E. Berger, Timothy K. Moore, to Response to 83 MOTION to Dismiss Amended Complaint (In Support of Motion to Dismiss Amended Complaint) filed by Philip E. Berger, Timothy K. Moore. (BOYLE, WILLIAM) (Entered: 08/21/2023)

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89	Aug 21, 2023	ANSWER to Amended Complaint by KODY H. KINSLEY. (WOOD, MICHAEL) (Entered: 08/21/2023)
90	Aug 21, 2023	ANSWER to Amended Complaint by JOSHUA H. STEIN. (NARASIMHAN, SRIPRIYA) (Entered: 08/21/2023)
91	Aug 21, 2023	ANSWER to Amended Complaint by JEFF NIEMAN. (O'BRIEN, ELIZABETH) (Entered: 08/21/2023)
	Aug 29, 2023	Motion Submitted to JUDGE WILLIAM L. OSTEEEN, JR., re: 83 MOTION to Dismiss Amended Complaint. (Daniel, J) (Entered: 08/29/2023)
92	Oct 6, 2023	MOTION to Withdraw as Attorney DENISE M. HARLE by on behalf of Philip E. Berger, Timothy K. Moore. (Attachments: # 1 Text of Proposed Order)(HARLE, DENISE) (Entered: 10/06/2023)
93	Oct 24, 2023	ORDER signed by JUDGE WILLIAM L. OSTEEEN, JR on 10/24/2023, that the Motion of Denise M. Harle to Withdraw as Counsel for Intervenor-Defendants, (Doc. 92), is GRANTED and Attorney Harle is hereby withdrawn from representing Intervenor-Defendants Timothy K. Moore and Philip E. Berger. Remaining counsel of record for Intervenor-Defendants shall continue to serve as counsel in this matter. (Taylor, Abby) (Entered: 10/24/2023)
	Dec 21, 2023	Motion No Longer Submitted to JUDGE WILLIAM L. OSTEEEN, JR. - 83 MOTION to Dismiss Amended Complaint. (km) (Entered: 12/21/2023)
	Dec 21, 2023	Case Reassigned to CHIEF DISTRICT JUDGE CATHERINE C. EAGLES. JUDGE WILLIAM L. OSTEEEN, JR no longer assigned to the case. (km) (Entered: 12/21/2023)
	Dec 21, 2023	Motion Submitted: 83 MOTION to Dismiss Amended Complaint to CHIEF DISTRICT JUDGE CATHERINE C. EAGLES. (km) (Entered: 12/21/2023)
94	Jan 3, 2024	NOTICE of Hearing: Motion Hearing set for 1/17/2024 09:30 AM in Greensboro Courtroom #3 before CHIEF DISTRICT JUDGE CATHERINE C. EAGLES. (rw) (Entered: 01/03/2024)
95	Jan 5, 2024	STANDARD ORDER for civil cases proceeding before CHIEF DISTRICT JUDGE CATHERINE C. EAGLES on 1/5/24. (rw) (Entered: 01/05/2024)
	Jan 17, 2024	Minute Entry for proceedings held before CHIEF DISTRICT JUDGE CATHERINE C. EAGLES. Attorneys Eva Temkin, Paul Mezzina, and Chelsea Corey present as counsel for the Plaintiff. Attorneys Sarah Boyce and Sripriya Narasimhan present as counsel for defendant Joshua Stein. Attorney Elizabeth O'Brien present as counsel for defendant Jeff Nieman. Attorney Michael Wood present as counsel for defendant Kody H. Kinsley. Attorney Michael Bulleri present as counsel for defendant Michaux R. Kilpatrick, MD, PHD. Attorneys William Boyle and Erin Hawley present as counsel for Intervenor Defendants. Motion Hearing held on 1/17/2024 re 83 MOTION to Dismiss Amended Complaint filed by Timothy K. Moore, Philip E. Berger. With agreement and consent of all parties, the Court converts Motion to Dismiss to Cross Motion for Summary Judgment and the matter remains under advisement. Court authorizes supplemental briefs up to 3000 words by each of the parties present and any physical copies of websites referenced in the earlier briefs can be attached. Supplemental briefs due on 2/5/2024. (Court Reporter Briana Chesnut.) (rw) (Entered: 01/17/2024)
96	Jan 25, 2024	Transcript of Proceedings held on 01/17/2024, before Judge Catherine C. Eagles.

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		Court Reporter Briana L. Chesnut, Telephone number 336-734-2514. Email: brinesbit@gmail.com. Transcript may be viewed at the court public terminal or purchased through the Court Reporter before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER. NOTICE RE: REDACTION OF TRANSCRIPTS: The parties have 5 business days to file a Notice of Intent to Request Redaction and 21 calendar days to file a Redaction Request. If no notice is filed, this transcript will be made electronically available to the public without redaction after 90 calendar days. Transcript may be viewed at the court public terminal or purchased through the court reporter before the 90 day deadline. After that date it may be obtained through PACER. Redaction Request due 2/20/2024. Redacted Transcript Deadline set for 2/29/2024. Release of Transcript Restriction set for 4/29/2024. (bc) (Entered: 01/25/2024)
97	Jan 26, 2024	MOTION to Withdraw as Attorney ERICA STEINMILLER-PERDOMO by on behalf of Philip E. Berger, Timothy K. Moore. (Attachments: # 1 Text of Proposed Order)(STEINMILLER-PERDOMO, ERICA) (Entered: 01/26/2024)
	Feb 2, 2024	TEXT ORDER issued by CHIEF DISTRICT JUDGE CATHERINE C. EAGLES on 2/2/24 granting 97 Motion to Withdraw as Attorney. Attorney ERICA STEINMILLER-PERDOMO terminated. (rw) (Entered: 02/02/2024)
98	Feb 5, 2024	SUPPLEMENTAL MEMORANDUM filed by Defendant JOSHUA H. STEIN re Motion Hearing, (Supplemental) filed by JOSHUA H. STEIN. (NARASIMHAN, SRIPRIYA) Modified to add text to title of document on 2/6/2024 (at). (Entered: 02/05/2024)
99	Feb 5, 2024	SUPPLEMENTAL MEMORANDUM filed by Plaintiff AMY BRYANT, MD re Motion Hearing,, (Supplemental) filed by AMY BRYANT, MD. (COREY, CHELSEA) Modified to add text to title of document on 2/6/2024 (at). (Entered: 02/05/2024)
100	Feb 5, 2024	SUPPLEMENTAL BRIEF filed by Intervenor Defendants Philip E. Berger, Timothy K. Moore re Motion Hearing, Supplemental Brief filed by Philip E. Berger, Timothy K. Moore. (Attachments: # 1 Exhibit 1: Letter from FDA to Population Council, # 2 Exhibit 2: Immediate Complications After Medical Compared with Surgical Termination of Pregnancy, # 3 Exhibit 3: FDA Q&A on Mifepristone, # 4 Exhibit 4: Guttmacher Article, # 5 Exhibit 5: Map: Where medication abortion is and isn't legal, # 6 Exhibit 6: Tracking Abortion Bans Across the Country, # 7 Exhibit 7: FDA REMS Public Dashboard, # 8 Exhibit 8: Opioid Regulations, # 9 Exhibit 9: FDA Law Blog Article, # 10 Exhibit 10: ACOG Practice Bulletin No. 193, # 11 Exhibit 11: FDA Mifeprex Label)(HAWLEY, ERIN) Modified to add text to title of document on 2/6/2024 (at). (Entered: 02/05/2024)
101	Feb 12, 2024	MOTION to Withdraw as Attorney CHELSEA COREY Jessica Greenbaum by on behalf of AMY BRYANT, MD. (Attachments: # 1 Text of Proposed Order)(COREY, CHELSEA) (Entered: 02/12/2024)
	Feb 13, 2024	Motions Submitted: 101 MOTION to Withdraw as Attorney CHELSEA COREY Jessica Greenbaum to CHIEF DISTRICT JUDGE CATHERINE C. EAGLES- (rw) (Entered: 02/13/2024)
102	Feb 13, 2024	ORDER that the motion, Doc. 101 , is GRANTED and Jessica Greenbaum is no longer counsel of record for Plaintiff. Signed by CHIEF DISTRICT JUDGE CATHERINE C. EAGLES on 02/13/2024. (at) (Entered: 02/13/2024)
103	Apr 30, 2024	MEMORANDUM OPINION AND ORDER signed by CHIEF DISTRICT JUDGE CATHERINE C. EAGLES on 4/30/2024; that: 1. The defendant-intervenors' motion for

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		summary judgment is GRANTED in part. The provisions of North Carolina's Abortion Laws that require an in-person 72-hour advance consultation, use of an ultrasound, an in-person examination, blood testing, and reporting non-fatal adverse events to the state deal with informed consent to the termination of pregnancy and broader health and safety matters and are not preempted. The defendant-intervenors' motion for summary judgment is otherwise DENIED. 2. The plaintiff's motion for summary judgment is GRANTED in part. The provisions of North Carolina's Abortion Laws requiring physician only prescribing, in-person prescribing, dispensing, and administering, scheduling of an in-person follow-up appointment, and non-fatal adverse event reporting to the FDA violate the Supremacy Clause and are declared unconstitutional. The plaintiff's motion for summary judgment is otherwise DENIED. 3. The parties shall exchange proposed judgments and injunctions, meet and confer to narrow areas of disagreement, and thereafter file a joint submission with proposed judgments and injunctions attached no later than May 21, 2024. The joint submission is limited to identifying and briefly addressing points of disagreement as to form and may not exceed 3000 words. No additional briefing is otherwise authorized. (sh) (Entered: 04/30/2024)
104	May 21, 2024	JOINT SUBMISSION REGARDING PROPOSED JUDGMENTS AND INJUNCTIONS by Plaintiff AMY BRYANT, MD re 103 Memorandum Opinion and Order JOINT SUBMISSION REGARDING PROPOSED JUDGMENTS AND INJUNCTIONS. (Attachments: # 1 Exhibit A Plaintiff's Proposal, # 2 Exhibit B Intervenors' Proposal, # 3 Exhibit C Redline)(COREY, CHELSEA) Modified on 5/22/2024 to correct title of document (rw). (Entered: 05/21/2024)
105	Jun 3, 2024	JUDGMENT AND PERMANENT INJUNCTION, signed by CHIEF DISTRICT JUDGE CATHERINE C. EAGLES on 06/03/2024. For the reasons set forth in the Memorandum Opinion and Order filed on April 30, 2024, it is hereby ORDERED and ADJUDGED as set out herein. The defendant-intervenors are entitled to judgment on the remaining provisions of North Carolina law challenged by the plaintiff, which are not preempted. Those remaining claims are DISMISSED WITH PREJUDICE. (at) (Entered: 06/03/2024)
106	Jun 20, 2024	NOTICE OF APPEAL as to 105 Preliminary Injunction, Judgment, by Philip E. Berger, Timothy K. Moore. Filing fee \$ 605, receipt number ANCMDC-3856824. (HAWLEY, ERIN) (Entered: 06/20/2024)
107	Jun 21, 2024	Electronic Transmission of Notice of Appeal and Docket Sheet to US Court of Appeals re 106 Notice of Appeal (at) (Entered: 06/21/2024)
108	Jun 24, 2024	NOTICE of Docketing Record on Appeal from USCA re 106 Notice of Appeal filed by Timothy K. Moore, Philip E. Berger. USCA Case Number 24-1576. Case Manager: Jeffrey S. Neal. (at) (Entered: 06/24/2024)
109	Jun 28, 2024	NOTICE OF CROSS APPEAL as to 103 Memorandum Opinion and Order, 105 Preliminary Injunction, Judgment by AMY BRYANT, MD. Filing fee \$ 605, receipt number ANCMDC-3862682. (COREY, CHELSEA) (Entered: 06/28/2024)
110	Jul 1, 2024	Electronic Transmission of Notice of Appeal and Docket Sheet to US Court of Appeals re 109 Notice of Cross Appeal (at) (Entered: 07/01/2024)
111	Jul 2, 2024	NOTICE of Docketing Record on Appeal from USCA re 106 Notice of Appeal filed by Timothy K. Moore, Philip E. Berger, 109 Notice of Cross Appeal filed by AMY BRYANT, M.D. USCA Case Number 24-1600. Case Manager: Jeffrey S. Neal. (at)

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		(Entered: 07/02/2024)
112	Jul 2, 2024	USCA ORDER. The court consolidates Case No. 24- 1576 (L) and Case No. 24-1600 as cross-appeals. The appellant in Case No. 24-1576 shall be considered the appellant for purposes of the consolidated appeals and shall proceed first at briefing and at oral argument. Entry of appearance forms and disclosure statements filed by counsel and parties to the lead case are deemed filed in the secondary case. (at) (Entered: 07/02/2024)
113	Jul 2, 2024	NOTICE OF CROSS APPEAL as to 103 Memorandum Opinion and Order, 105 Preliminary Injunction, Judgment by JOSHUA H. STEIN. Filing fee \$ 605, receipt number ANCMDC-3863934. (BOYCE, SARAH) (Entered: 07/02/2024)
114	Jul 2, 2024	Electronic Transmission of Notice of Appeal and Docket Sheet to US Court of Appeals re 113 Notice of Cross Appeal (at) (Entered: 07/02/2024)
115	Jul 9, 2024	NOTICE of Docketing Record on Appeal from USCA re 113 Notice of Cross Appeal filed by JOSHUA H. STEIN. USCA Case Number 24-1617. Case Manager: Jeffrey S. Neal. (at) (Entered: 07/09/2024)
116	Jul 9, 2024	USCA ORDER. The court consolidates Case No. 24-1576(L), Case No. 24-1600, and Case No. 24-1617 as cross-appeals. The appellant in Case No. 24-1576 shall be considered the appellant for purposes of the consolidated appeals and shall proceed first at briefing and at oral argument. Entry of appearance forms and disclosure statements filed by counsel and parties to the lead case are deemed filed in the secondary case. (at) (Entered: 07/09/2024)
117	Dec 3, 2024	USCA ORDER. For reasons appearing to the court, this case is placed in abeyance pending a decision by this court in GenBioPro, Inc. v. Raynes, No. 23-2194. 24-1576(L). (at) (Entered: 12/03/2024)
118	Dec 31, 2024	USCA ORDER. The court grants the motion to withdraw from further representation on appeal as to attorney Sarah G. Boyce. 24-1576(L). (at) (Entered: 01/03/2025)
119	Jan 28, 2025	USCA ORDER The court grants the motion to withdraw from further representation on appeal as to attorney Amar Majmundar. USCA Case Number 24-1576 (L). (jls) (Entered: 01/28/2025)
120	May 2, 2025	USCA ORDER The court grants the motion to withdraw from further representation on appeal as to attorney Sripriya Narasimhan. USCA Case Number 24-1576 (L). (jls) (Entered: 05/02/2025)
121	Aug 11, 2025	***FILED IN ERROR***NOTICE OF WITHDRAWAL AND SUBSTITUTION OF COUNSEL on behalf of Intervenor Defendants Philip E. Berger, Timothy K. Moore. WILLIAM ELLIS BOYLE is substituted as counsel for Intervenor Defendants. Attorney WILLIAM ELLIS BOYLE terminated. (BOYLE, WILLIAM) Modified on 8/12/2025, Attorney Alex C. Dale must file his own Notice of Appearance in this case using his own login and password.(at). (Entered: 08/11/2025)
122	Aug 26, 2025	NOTICE OF WITHDRAWAL AND SUBSTITUTION OF COUNSEL on behalf of Defendant JEFF NIEMAN. KRISTIN JO UICKER is substituted as counsel for Defendant. Attorney ELIZABETH CURRAN O'BRIEN terminated. (UICKER, KRISTIN) (Entered: 08/26/2025)